

during the preliminary injunction proceedings, the law of the case doctrine governs. See United States v. Bartsh, 69 F.3d 864, 866 (8th Cir. 1995) (explaining that the law of the case doctrine requires a panel to follow a decision in a prior appeal in later proceedings “unless a party introduces substantially different evidence, or the prior decision is clearly erroneous and works a manifest injustice”); Howe v. Varsity Corp., 36 F.3d 746, 752 (8th Cir. 1994) (finding that appellate review of the legal issues at the heart of a preliminary injunction decision constituted the law of the case).

III. CONCLUSION

For the foregoing reasons, we affirm the judgment of the district court.
